



Delaware County Council Meeting March 29th 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=xJVSsrgMCIO
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Delaware County Council Meeting Summary

Meeting Date: March 29, 2022

Location: Delaware County Commissioner's Courtroom

Body: Delaware County Council

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Council meeting to order at 00:04:45 on March 29, 2022, in the Delaware County Commissioner's courtroom. The meeting opened with the Pledge of Allegiance led by Tony.
- **Attendance:**
 - **Present:** Mr. Ballard, Mrs. Chambers, Ms. Lassiter (online), Ms. Piper, Mr. Quakenbush, Mr. Webb, Mr. Alexander, and Jane (online/audio issues noted at start).
 - **Absent:** None explicitly noted.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening Pledge of Allegiance led by Tony.

- **Approval of Agenda:** The agenda was confirmed as posted and advertised. Approved by roll call vote (Passed Unanimously).
 - **Approval of Minutes:** February meeting minutes approved by roll call vote (Passed Unanimously).
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3. Substantive Business & Board Action

- **00:04:08 Presentation: Judge Linda R.L. Wolff regarding Magistrate Position**
 - **Sponsor / Presenter:** Judge Linda R.L. Wolff (Delaware Circuit Court No. 3, Presiding Judge of Delaware Circuit Courts) and Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Judge Wolff presented a proposal to convert the county's existing master commissioner position into a magistrate position. Converting to a magistrate makes the position a state employee, shifting health insurance and retirement (to the judicial retirement fund instead of PERF) expenses to the state. While the county remains responsible for a portion of the salary, the change frees up approximately \$42,000 annually in the court budget, alongside savings to county general for benefits. It also increases judicial efficiency, as magistrates can issue legally binding rulings, findings of fact, conclusions of law, and sign orders immediately without needing a sitting judge's secondary review and signature.
 - **Action & Vote Disposition:** No immediate final vote; the council reached a consensus to draft and approve a formal letter of support at the next month's meeting.
- **00:29:47 Financial Transfers & Ordinance Amendments: Public Defender's Office**
 - **Sponsor / Presenter:** Shelley Harvey, Administrator of the Public Defender's Office / Presented by Tanya.
 - **Deliberation Summary:** Transfer of funds (\$25,000) between pay lines to cover salaries following the resignation of two public defenders, enabling the hiring of two replacements.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:31:08 Financial Transfers: Sheriff's Office**
 - **Sponsor / Presenter:** Nancy / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$3,000 from overtime to settlement to cover a bonus/settlement payout for an individual that did not process correctly in December.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:32:41 Financial Transfers: Jail LOIT**
 - **Sponsor / Presenter:** Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$28,070.76 between correctional officer salary lines.

- **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:32:26 Financial Transfers: Misdemeanor Fund**
 - **Sponsor / Presenter:** Nancy / Presented by Tanya.
 - **Deliberation Summary:** Transfers totaling positive adjustments to settlement wages, FICA, and PERF, offset by a negative adjustment of \$7,135 to contractual services, to cover payouts for two jailers returning as county employees.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:33:36 Financial Transfers: Cumulative Bridge**
 - **Sponsor / Presenter:** Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$26,549.98 to cover a replacement employee following a resignation.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:36:07 Financial Transfers: Highway Department**
 - **Sponsor / Presenter:** Presented by Tanya.
 - **Deliberation Summary:** Adjustments across truck driver and equipment operator pay lines (amounting to \$34,150.70, \$35,987.80, and \$36,071.48) for zero-net-effect position shifts.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:37:30 Financial Transfers: Title IV-D Court**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$229 for life insurance increases out of county general, as this budget lacked pre-existing internal appropriations for the increase.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:39:42 Financial Transfers: EDIT Projects**
 - **Sponsor / Presenter:** Presented by Tanya.
 - **Deliberation Summary:** Appropriation of \$4,000,000 for EDIT (Economic Development Income Tax) projects, with approximately \$3,614,000 allocated toward standard annual EDIT bond payments.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:41:37 Financial Transfers: Building Maintenance / Key Fobs**
 - **Sponsor / Presenter:** Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$175 for door security key fobs.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:42:31 Financial Transfers: Convention and Tourism**
 - **Sponsor / Presenter:** Jared Walls, Secretary of the Travel and Tourism Commission / Muncie Visitors Bureau.
 - **Deliberation Summary:** Request to move \$36,000 from reserves to operating to hire "SearchWide," a nationwide search firm, to conduct a nationwide search for a new executive director after an internal search failed. The fee covers candidate interviews, travel, background checks, and includes a one-year guarantee.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).

- **00:45:46 Financial Transfers: CASA Fund**
 - **Sponsor / Presenter:** Emily Anderson / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$195 for life insurance from internal budget.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **00:65:16 Financial Transfers: CASA JCAT**
 - **Sponsor / Presenter:** Emily Anderson / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$265 for life insurance from internal budget.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **00:56:56 Financial Transfers: Family Recovery Court Grant**
 - **Sponsor / Presenter:** Emily Anderson / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$188 (\$16 life, \$100 LTD/STD, \$72 health) for grant-funded family recovery court coordinator.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **00:57:53 Financial Transfers: Adult User Fee**
 - **Sponsor / Presenter:** Emily Anderson / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$12,833 (\$12,209 health, \$624 life) funded by probation user fees due to a replacement probation officer requiring health insurance where the previous holder did not.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **00:58:52 Financial Transfers: Sales Disclosure**
 - **Sponsor / Presenter:** Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$1,273 (\$300 personal property, \$300 postcard printing, \$673 annual dues/subscriptions) from sales disclosure funds (non-budget cycle).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **01:00:09 Financial Transfers: Statewide 911**
 - **Sponsor / Presenter:** Fred Cummings, 911 Director / Presented by Tanya.
 - **Deliberation Summary:** Transfer of \$33,000 to cover 11 former employees' union grievance settlements originally approved in December but never paid out. Additionally, \$100,000 appropriated for PSAP equipment (radio console, electronics, monitors) out of the statewide 911 equipment fund.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **01:03:08 Comprehensive Approval Motion**
 - **Action & Vote Disposition:** Motion to approve all financial transfers, amend the salary ordinance with like reductions, and amend hiring freeze ordinance 2020-015. Approved by roll call vote (Passed Unanimously).
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4. Open Public Comment / Citizen Forum

- **01:08:41 Tim Nickim** (Rural Delaware County Resident, 9335 N. CR 500 West, Muncie): Addressed the council regarding the steering committee being formed for solar energy implementation. He requested that the council commission an objective local economic impact study regarding large-scale solar installations, noting that existing reports are either out-of-state or developer-produced, and asked the county to consider agricultural supply impacts. Council members advised him to direct requests regarding studies through the County Commissioners or the Planning Commission.
- **01:18:46 Harold King** (Gaston area farmer): Spoke regarding the solar steering committee formation, noting challenges in finding neutral members, and offered positive feedback regarding the county highway department's responsive road maintenance during winter weather.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Pam McCammon (HR Director) clarified that county short-term and long-term disability rates did not double universally; billing increases likely resulted from employees opting into higher policy tiers.
 - Sheriff Tony Skinner provided a jail staffing update, noting the facility is currently about 10 positions short, with 4 recent hires moving on to local police departments, and overtime usage at approximately 50% for the first three months of the year.
- **Adjournment:** Official motion to adjourn made and approved by roll call vote (Passed Unanimously) at approximately **01:20:01**.

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